

**UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION**

Ensuring the Timely and Orderly
Interconnection of Large Loads

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Docket No. RM26-4-000

**COMMENTS OF
AMERICAN ELECTRIC POWER SERVICE CORPORATION**

American Electric Power Service Corporation (“AEP”), on behalf of its affiliates,¹ submits the following comments in response to the Advance Notice of Proposed Rulemaking (“ANOPR”) pursuant to the Notice of Request for Comments (“Notice”) issued by the Federal Energy Regulatory Commission (“FERC” or the “Commission”) on October 27, 2025. We commend the Department of Energy (“DOE”) and the Commission for initiating this timely proceeding to address the interconnection of large loads and cut red tape. Establishing a clear pathway to connect data centers and other large load customers to the grid at the speed required by large load developers requires priority action necessary to cement energy dominance. AEP has taken steps within its service territory to proactively address the interconnection challenges outlined in the ANOPR, while ensuring that affordability for our customers remains a key focus. AEP is committed to working with the DOE, the Commission, and state and regional partners to identify and implement further actions to ensure that our nation has the energy resources and infrastructure to support America’s next generation of innovation and industrial growth.

¹ Appalachian Power Company, Indiana Michigan Power Company, Kentucky Power Company, Kingsport Power Company, Ohio Power Company, Wheeling Power Company, Public Service Company of Oklahoma, Southwestern Electric Power Company, AEP Appalachian Transmission Company, Inc., AEP Indiana Michigan Transmission Company, Inc., AEP Kentucky Transmission Company, Inc., AEP Ohio Transmission Company, Inc., AEP West Virginia Transmission Company, Inc., AEP Oklahoma Transmission Company, Inc., and AEP Southwestern Transmission Company, Inc.

I. Executive Summary

The nation's electric grid is currently facing challenges from rapidly increasing electric demand, largely driven by the expansion of large loads, particularly data centers.² To address this challenge, DOE, as articulated in the ANOPR, proposes to standardize interconnection procedures and agreements for large loads, particularly those intending to co-locate with new or existing generation facilities at the same point of interconnection, leveraging the Commission's legal authority over interstate transmission.³ However, an approach which focuses solely on interconnecting large loads to the electric grid will not fully support rapid data center and industrial load growth. The Commission must also make the necessary changes to ensure that the generation needed to serve that load is able to come online in a timely and efficient fashion. It is essential for the Commission to use this opportunity to address the fundamental issues in generation interconnection, transmission planning, and cost allocation that hinder the rapid connection of large loads.

First, additional generation is urgently needed to serve large loads.⁴ The Commission should quickly address generation's inability to interconnect and inject energy into the grid in a timely manner with a solution that directly breaks queue backlogs. Usually, generation must wait until all the upgrades necessary to accommodate its interconnection are constructed through

² In an analysis of U.S. load growth trends issued earlier this year, ICF International ("ICF") reported that "U.S. electricity demand is now expected to grow 25% by 2030 and 78% by 2050 from 2023 levels" and that "peak electricity demand is now expected to grow 14% by 2030 and 54% through 2050". See Latit Batra et al., *Rising Current: America's Growing Electricity Demand*, ICF, at 4 (2025), <https://www.icf.com/insights/energy/impact-rapid-demand-growth-us>. Data centers alone may account for as much as 12% of all U.S. electricity consumption by 2028 (up from 4.4% in 2023). See Arman Shehabi et al., *2024 United States Data Center Energy Usage Report*, Lawrence Berkeley National Laboratory, at 5 (Dec. 2024), <https://escholarship.org/uc/item/32d6m0d1>.

³ *In Re Interconnection of Large Loads to the Transmission System*, Advanced Notice of Proposed Rulemaking, Docket No. RM26-4-000, at P 12 (filed Oct. 27, 2025) ("ANOPR").

⁴ Data center demand in the U.S. and internationally is expected to increase by over 160% by 2030 as a result of AI demand, and approximately 60% of data center demand growth will need to be met with new generating capacity. *Powering the AI Era*, Goldman Sachs, at 3, 15 (2025), <https://www.goldmansachs.com/what-we-do/investment-banking/insights/articles/powering-the-ai-era/report.pdf>.

redundant study processes which take years to complete. This adds expense and significant delay and limits the amount of energy available to serve large loads when every available generation resource should be utilized. AEP supports the application of a “connect and manage” approach (in tandem with other reforms, such as the entry fee model for generator interconnection described below) as a practical solution for the timely interconnection of generation. Under this approach, all generators pay an entry fee and can rapidly connect to the grid subject to curtailment until supporting network transmission is planned and constructed. Generators may start as energy resources for some portion of their capacity, but are on a pathway to full recognition as capacity resources until supporting network transmission is built. By decoupling interconnection from network expansion in the near term, the grid will benefit from faster interconnection for generation, reduced delays from waiting for large-scale upgrades, and a flexible framework for managing grid reliability in real-time until the broader processes recommended in these Comments can take effect.

Second, the Commission should decisively address the current generation interconnection models which are hindering sufficient generation from coming online quickly enough to meet today’s generation resource adequacy and reliability needs. This failure is reflected in the significant queue backlogs and the repeated efforts by transmission providers to solve the problems through interconnection reforms.⁵ While AEP supports RTO reforms to improve the

⁵ See e.g., *PJM Interconnection, L.L.C.*, 184 FERC ¶ 61,006 (2023), *pet. for review dismissed*, 126 F.4th 660 (D.C. Cir. 2025) (order sustaining result of order accepting subject to condition, interconnection process reform transitioning from a serial first-come, first-served queue process to a first-ready, first served cluster cycle approach); *PJM Interconnection, L.L.C.*, 190 FERC ¶ 61,084 (2025), *modified on den. of reh’g*, 192 FERC ¶ 61,085 (accepting a one-time reliability-based expansion of the eligibility criteria for Transition Cycle #2 of PJM’s existing interconnection queue); *PJM Interconnection, L.L.C.*, 190 FERC ¶ 61,083 (accepting tariff revisions governing surplus interconnection service, to facilitate the rapid expansion of existing and planned generation facilities on the PJM’s system); *PJM Interconnection, L.L.C.*, Proposed Tariff Amendments for Replacement Generations, Docket No. ER26-403-000 (filed Oct. 31, 2025); *Sw. Power Pool, Inc.*, Submission of Revisions to the SPP Open Access Transmission Tariff to Implement Consolidated Planning Process, Docket No. ER26-414-000 (filed Nov. 3, 2025); *Sw. Power Pool, Inc.*, Submission of Tariff Revisions to Add the High Impact Large Load Processes and High Impact Large Load

interconnection process, more is required. New and different approaches need to be considered and implemented to ensure that severely needed generation is interconnected and available swiftly and efficiently.⁶ This is why AEP supports the widespread adoption of an entry fee model for generator interconnections, which integrates generator interconnection and transmission planning into a single streamlined process, reducing duplicative studies and expediting transmission upgrade identification. It incorporates a predictable, transparent, and easy to calculate fee for generators to pay to connect to the grid, minimizing delays from cost disputes and preventing restudies as generators drop out of the queue due to unexpected and growing interconnection costs. This model will address the significant cost and schedule uncertainties faced by generators, which have resulted in delays and backlogged queues for large industrial and data center developments.

Third, the prevalent siloed approach to transmission planning—in which there are separate, reactive planning processes for generation interconnection and grid expansion—will not deliver infrastructure fast enough to ensure the United States continues to be a leader in artificial intelligence and is able to grow its manufacturing base. Widespread adoption of proactive transmission planning will better anticipate and plan for load and generation in an efficient and

Generation Assessment, Docket No. ER26-247-000 (filed Oct. 24, 2025); *Sw. Power Pool, Inc.*, Submission of Tariff Revisions to Implement Generator Interconnection Priority Process, Docket No. 3570-000 (filed Sept. 30, 2025); *Midcontinent Indep. Sys. Operator, Inc.*, 191 FERC ¶ 61,231 (2025) (order sustaining result of previous order accepting filing by Midcontinent Indep. Sys. Operator, Inc., and Southwest Power Pool implementing the Joint Targeted Interconnection Queue framework); *Midcontinent Indep. Sys. Operator, Inc.*, 191 FERC ¶ 61,154 (2025) (order accepting revisions to generation interconnection procedures to allow interconnection customers to use a different point of interconnection for a Replacement Generating Facility than the point of interconnection used by an Existing Generating Facility); *Midcontinent Indep. Sys. Operator, Inc.*, Revisions to Open Access Transmission, Energy and Operating Reserve Tariff ERAS Quarterly Study Cycle Expansion Filing, Docket No. ER25-3543 (filed Sept. 26, 2025) (proposed revisions to increase the number of Expedited Resource Addition Studies from ten to fifteen per quarter); *Midcontinent Indep. Sys. Operator, Inc.*, 191 FERC ¶ 61,157 (2025) (order sustaining acceptance of prior order accepting modifications to generator interconnection study process to implement a queue cap and exemptions to that cap).

⁶ *Sw. Power Pool, Inc.*, 192 FERC ¶ 61,131, at P 3 (2025) (Rosner, Comm’r, concurring) (“It is critically important that grid operators continually look for ways to refine the efficiency and speed with which new generation can connect to the grid, especially as our country faces growing power needs to win the global AI race, re-shore manufacturing, and keep electricity affordable for everyday consumers.”).

cost-effective manner, allowing both generation and data centers to be connected more swiftly. Consistent with the ANOPR's third Principle for Reform—which encourages studying the interconnection of load and generation together⁷—such proactive planning will necessarily integrate the consideration of both.

Lastly, delays and uncertainty over who must pay for transmission can prevent investment in new transmission needed to serve data centers and expanding load on the grid. Disputes over cost allocation slow our nation's progress and impede the connection of these loads to the system. To avoid time-consuming disputes and smooth the path for transmission investment, the Commission should establish a uniform national charge for all “backbone” transmission projects—including, for example, high voltage transmission at 345 kV and above. This change would be applicable to all customers across the United States and fund a comprehensive national expansion of the transmission system to interconnect new generation and serve large loads.

These reforms to generation interconnection, transmission planning, and cost allocation, when implemented together, will expedite the interconnection of large loads by facilitating the modernization of the grid and addressing the root causes of delays.

II. AEP Has Leading Experience Interconnecting and Serving Large Load Customers

AEP is one of the largest electric utilities in the United States, serving over five million customers across 11 states and operates an extensive transmission network spanning more than 40,000 miles. AEP is experiencing a welcome and historic surge in large load activity across its service territory, with direct implications for transmission planning, cost allocation, and reliability oversight. AEP expects over 28 GW of contracted new load by 2030, supported by binding retail customer financial agreements. This figure is part of a broader pipeline of 190 GW of load

⁷ ANOPR, at P 20.

requests. AEP's system peak demand is projected to increase from 37 GW to 65 GW by the end of the decade.

This growth is concentrated in Ohio, Texas, and Indiana, with Ohio alone hosting over 13 GW of data center load in its interconnection queue. AEP expects to energize 4.7 GW of new data center capacity in 2025 alone, a 25% increase over 2024. To support this expansion, AEP is executing a \$72 billion capital investment plan, including \$30 billion for transmission infrastructure, with a focus on expanding its 765-kV transmission backbone—the largest in the United States. This robust transmission system has made AEP a preferred interconnection partner for hyperscale customers such as Amazon Web Services, Meta, and Google, while also positioning the company as a key enabler of domestic manufacturing and economic growth across its service territory.

AEP was the first utility in the country to implement state-level tariff reforms to ensure cost recovery and preserve affordability to protect existing customers. These reforms include minimum monthly usage thresholds (*e.g.*, 85% in Ohio), long-term contract requirements (12 years and greater), and provisions to ensure co-located loads contribute equitably to transmission and reliability service costs. These terms mitigate financial and credit risk to existing customers by ensuring that new data centers and large industrial loads pay their fair share of the utility's cost of service and stand behind their commitments to take service. These tariffs are tailored to the needs of each state with large load thresholds ranging from 25 MW to 150 MW, reflecting the sizes of interested large load customers in each state. AEP has implemented these tariffs in Ohio, Indiana, West Virginia, and Kentucky⁸ and has filed similar tariff structures for state commission approval in Virginia, Texas, and Michigan.

⁸ See *In re Ohio Power Co. for New Tariffs Related to Data Centers and Mobile Data Centers*, Docket No. 24-508-EL-ATA (Pub. Utilities Comm'n of Ohio, June 23, 2025); *In re the Verified Pet. of Ind. Mich. Power Co. for Approval*

AEP's tariff reforms are a product of the current generation interconnection and transmission planning dynamics affecting the speed with which data centers and large industrial customers can connect to and be served by the grid. These tariffs allow AEP's utilities to manage the process of connecting and serving the electricity needs of large loads within the transmission and generation capacity constraints of the wholesale electric grid. These tariffs manifest the necessity and urgency of modernizing generation interconnection and transmission planning frameworks to more rapidly provide service to large, non-traditional customers.

III. The Commission Should Reform Generation Interconnection Processes, Promote Proactive Transmission Planning, and Adapt Transmission Cost Allocation to Support America's Shared Interest in Rapidly Interconnecting Data Centers and Other Large Loads

A. A "Connect and Manage" Approach Will Accelerate Generation Interconnection

A flaw in most interconnection processes is the inability of new generation to interconnect and inject energy into the grid until all the upgrades necessary to accommodate the interconnection are constructed. Under the prevailing model, most generators seek network service, which ensures full deliverability, even under stressed grid conditions. This requirement often triggers extensive network upgrades, costing hundreds of millions of dollars and delaying projects for years. The process also may lack transparency into the actual frequency or magnitude of the congestion or curtailment experienced by the new generator, resulting in additional cost for what may be added reliability for only a few hours of the year or a small MW of curtailment. This "invest and connect" approach creates a missed opportunity for new generation to interconnect and be able to provide energy at some level to support load even when the transmission system may be constrained.

of Modifications to its Indus. Power Tariff – Tariff I.P., Cause No. 46097 (Ind. Utility Regul. Comm'n, Feb. 19, 2025); *Appalachian Power Co. and Wheeling Power Co. Appl. for Approval for Revisions to Schedules LCP and IP*, Docket No. 24-0611-E-T-PW (Pub. Serv. Comm'n of W. Va., March 25, 2025); and *Elec. Tariff Filing of Ky. Power Co. to Revise its Indus. Gen. Serv. Tariff*, Docket No. 2024-00305 (Ky. Pub. Serv. Comm'n, March 18, 2025).

“Connect and manage” takes a different approach. Generators interconnect under an energy-only model, accepting curtailment risk and foregoing capacity accreditation until upgrades are completed. Reliability is maintained through redispatch and curtailment rather than waiting for the construction of transmission facilities. Accordingly, “connect and manage” can be a practical solution for the timely interconnection of generation until broader process improvements to generator interconnection, proactive transmission system planning, and cost allocation can take effect to solve the generator interconnection problem on a long-term basis.

The Electric Reliability Council of Texas’s (“ERCOT”) approach to “connect and manage” is a good starting point. In ERCOT, this approach facilitates the efficient interconnection of new generation units by requiring only minimal upfront consideration of a new generator interconnection’s impact on the transmission network. Generators may interconnect to the transmission grid once they satisfy technical criteria—such as power-flow studies, telemetry readiness, and performance compliance—even when network constraints remain or transmission system upgrades are incomplete. ERCOT manages network constraints through market dispatch which imposes congestion and curtailment risks on interconnecting generators. Generators are able to interconnect more quickly with fewer network upgrades in exchange for bearing this risk. ERCOT uses market price signals to identify higher-value grid upgrades via proactive transmission planning. Any grid bottlenecks caused by a new generator are managed by ERCOT through market redispatch and curtailment, until they are later addressed through broader transmission planning processes.

This model decouples interconnection from network expansion. Deep upgrades can be identified and funded through proactive transmission planning, informed by congestion data and resource forecasts rather than reactive generator interconnection studies. The ERCOT “connect

and manage” system has demonstrated success in ERCOT where it has significantly reduced interconnection lead times.⁹ This market-centric congestion approach has enabled ERCOT to interconnect generation at a pace unmatched by other U.S. operators. For example, in 2021 and 2022, ERCOT interconnected 2.5 times more total capacity than PJM despite the fact that PJM is approximately twice as large as ERCOT in terms of peak load.¹⁰ The fundamental tradeoff is faster, cheaper interconnection in exchange for higher curtailment risk and no capacity compensation.

In markets which are not energy-only like ERCOT, “connect and manage” complements the “entry fee” model (described below) by serving as an additional solution to breaking the current generation queue backlog and fully utilizing all generation resources available, which can provide energy to serve load. More generation resources can get online at greater speed while other reforms to the generation interconnection process (and transmission planning) are implemented that enhance the efficiency and speed of getting generators fully connected with firm service without curtailments.¹¹

AEP also proposes that all generators that interconnect to the electric grid through “connect and manage” should be on an incremental pathway to full recognition as network resources as supporting network transmission is built proactively through other reformed processes, including

⁹ See Rob Gramlich et al., *Unlocking America’s Energy: How to Efficiently Connect New Generation to the Grid*, at 110 (2024), <https://www.brattle.com/wp-content/uploads/2024/08/Unlocking-Americas-Energy-How-to-Efficiently-Connect-New-Generation-to-the-Grid.pdf>.

¹⁰ Tyler Norris, *Beyond FERC Order 2023: Considerations on Deep Interconnection Reform*, at 2 (2023), <https://nicholasinstitute.duke.edu/publications/beyond-ferc-order-2023-considerations-deep-interconnection-reform> (“Norris 2023”).

¹¹ *Id.* at p. 14 (“To make connect and manage an improvement over status quo, proactive, holistic transmission planning is equally important as improved ERIS-based standards. The basic bargain is to avoid reliance on the GI process to support deep network upgrades and instead pursue deep upgrades through a separate planning process.”); The Brattle Group, *Generation Interconnection and Transmission Planning*, at 15 (2022), <https://www.brattle.com/wp-content/uploads/2022/08/Generation-Interconnection-and-Transmission-Planning.pdf> (“Integrating generation interconnection into more pro-active transmission planning processes offers substantial advantages;” “The costs and time required to interconnect the large number of resources ... can be reduced dramatically.”).

the entry fee model described below. In other words, there is no Energy Resource Interconnection Service (“ERIS”)-only option for “connect and manage” under AEP’s approach, as there is in ERCOT and certain other areas of the electric grid, where generators may upgrade to capacity-supporting network status later at additional expense and with further time-consuming transmission planning studies. All generators who pay the entry fee should be on equal footing (*i.e.*, all generators will become network resources) and the grid should be planned to enable them to be capacity resources. Generators who are currently taking ERIS service should be able to pay the applicable entry fee and transition to the Network Resource Interconnection Service (“NRIS”) pathway, and the ERIS-only option for generator interconnection should be phased out.

B. An Entry Fee Model Will Enable a More Efficient Interconnection Process and Facilitate Timely Interconnection of New Generation

Another significant stumbling block to efficient interconnection of generation needed to provide service to loads is the traditional “but-for” cost allocation methodology used to determine generator cost responsibility. Under this paradigm, generator developers pay 100% of the costs of the incremental network upgrades necessary to connect to the grid—those that would not be built but for the generation interconnection.¹² To identify necessary upgrades and the associated costs, transmission providers conduct studies based on the generation interconnection requests they receive in a particular queue.¹³ Often these studies are done on a cluster basis that involves multiple generator requests. Generators dropping from the queue (and thus the cluster study), often trigger restudies to update the necessary network upgrades and cost allocations of the

¹² *Standardization of Generator Interconnection Agreements and Procedures*, Order No. 2003, 104 FERC ¶ 61,103, at P 694 (July 24, 2003) (“[I]t is appropriate for the Interconnection Customer to pay initially the full cost of Interconnection Facilities and Network Upgrades that would not be needed but for the interconnection[.]”), *aff’d sub nom. Nat’l Ass’n of Regul. Util. Comm’rs v. FERC*, 475 F.3d 1277 (D.C. Cir. 2007) (“NARUC”).

¹³ See, e.g., PJM OATT § IV.A Interconnection Feasibility Study (36.2); MISO OATT, Attach. X; ISO-NE OATT, Schedule 22 (Large Generator Interconnection Procs.), Schedule 23 (Small Generator Interconnection Procs.), SPP OATT, Attach. V (Generator Interconnection Procs.).

remaining generators in the cluster. This iterative process slows down the interconnection process, results in significant queue backlogs, creates cost uncertainty for new generators seeking to interconnect, and engenders disputes. One way to avoid these pitfalls is to provide upfront cost certainty for generators before they enter the interconnection queue.

1. An Entry Fee Model Will Enhance Certainty and Transparency for Generation Developers

The Commission should adopt an “entry fee” model where generation developers pay a standardized or formulaic fee or charge to cover their interconnection costs. This fee should be known at the time the developer submits its request. Because the developer will have certainty regarding cost responsibility upfront, this model minimizes many of the obstacles that impede the interconnection process and inhibit the timely interconnection of new generation.

First, generation developers will know their interconnection cost responsibility *before* they enter the interconnection queue. They no longer will be relying on the iterative study process or a queue position to define their interconnection costs. Under the current study process, interconnection requests generally are studied in clusters based on queue position and cost allocation is based on those studies. This makes it difficult for a generation developer to predict or have any certainty about the cost of its interconnection before it submits an interconnection request. This uncertainty creates an incentive for developers to submit one or more speculative interconnection requests in the hopes of obtaining a better queue position or being included in a more advantageous cluster study that will result in lower interconnection costs.¹⁴ Speculative requests are often withdrawn when the cost allocation for the project increases beyond an

¹⁴ *Sw. Power Pool, Inc.*, Submission of Revisions to the SPP Open Access Transmission Tariff to Implement the Consolidated Planning Process, Docket No. ER26-414-000, at 25 (filed Nov. 3, 2025) (“SPP CPP Filing”) (“The GRID-C will also provide developers with greater cost certainty prior to entering the interconnection queue, which mitigates the incentive to submit speculative interconnection requests to test cost-optimal interconnection locations and fosters a more efficient interconnection study process.”).

interconnection customer's expectations or a generator submits multiple requests looking for the most cost effective point to interconnect. Such withdrawals trigger restudies that may result in modified interconnection costs, increasing the uncertainty even more and potentially leading to disputes and delays in the interconnection process.

In contrast, under an entry fee approach, the generation developer will be able to predict with a high degree of certainty its interconnection cost risk, thus eliminating the need to hedge its bets by submitting speculative requests. Upfront interconnection costs also provide the generator with certainty as it seeks financing and right-of-way arrangements, increasing the likelihood that the project will progress.

Second, how the entry fee is determined and calculated will be transparent and available to generation developers. Cost allocation will no longer be determined based on the perceived "winners" of the interconnection studies and restudies where the results could be challenged or disagreed with, but rather on a known basis that is easily calculated. The transparency and certainty derived from the use of an entry fee model will greatly reduce interconnection customers' concerns relating to the unpredictability or level of their interconnection cost responsibility, thereby beneficially increasing project certainty.

2. Structure of the Entry Fee

As the entry fee model is a fairly new concept,¹⁵ there are several plausible ways the fee could be structured. Guiding principles to consider in developing the entry fee include

¹⁵ While the entry fee model is a relatively new concept, a form of it has been embraced by Southwest Power Pool Inc., ("SPP") in its recent Consolidated Planning Process filing. In that filing, SPP noted "[b]ecause the GRID-C will be determined by SPP each CPP Planning Cycle before interconnection requests are submitted, it will provide interconnection customers with upfront certainty regarding the costs of System Network Upgrades they will be required to pay to interconnect, which reduces significantly the cost uncertainty present in the interconnection process today." SPP CPP Filing, at 25. In addition, in its order approving the MISO-SPP Joint Targeted Interconnection Queue (JTIQ), the Commission noted, "In essence, the RTOs are using forward-looking planning, historically used for transmission planning, to anticipate the need for transmission facilities to accommodate the interconnection of future

transparency, ability to easily calculate the fee, a reasonable level of cost certainty for generators before they submit significant financial deposits, and consistency with the “beneficiary pays” principle. Entry fees could be based on one or more of several factors: (i) the size of the generator (*e.g.*, a certain dollar amount per MW of the generator’s name plate rating); (ii) the location of the proposed project (*e.g.*, costs may be lower in areas where sufficient existing or planned transmission is available to accommodate the interconnection);¹⁶ (iii) the type of service being requested (which, under AEP’s proposal, would NRIS);¹⁷ or (iv) the type of generation facility (*e.g.*, wind, combustion turbine, and hydro generators may have different interconnection requirements). The fee could be formulaic or stated. It also could be standardized and applied on a local, regional, or even more broadly on a national basis. The key is that it is applied in a non-preferential and non-discriminatory way.

The entry fee also should be easily understandable and calculable. This will ward off disputes and reassure interconnection customers they are being treated fairly and non-discriminatorily. Whatever the chosen structure, the entry fee needs to be consistent with the “beneficiary pays” principle and thus be roughly commensurate with benefits the generator receives from the transmission grid.

3. Payment of the Entry Fee

While the amount of the entry fee will be known at the time the interconnection customer enters the queue, payment terms of the fee could be structured either to require remittance of the full amount at the time the developer submits its request, a partial upfront payment with the remainder over time, or payment in monthly installments. If the entry fee is to be collected over

generation capacity and facilitate the development of those facilities.” *Midcontinent Indep. System Operator*, 189 FERC ¶ 61,108, at P 197 (2024), *modified on den. of reh’g*, 191 FERC ¶ 61,231 (2025).

¹⁶ See *e.g.*, SPP CPP Filing at 26.

¹⁷ See, *e.g.*, SPP CPP Filing at 24.

time, there should be limitations on the period over which the payments are made. For example, SPP in its CPP filing proposed that the payment of the entry fee for ERIS would “begin within thirty days of the effective date of the CPP Generator Interconnection Agreements (“GIA”) and will terminate thirty days prior to the expected Commercial Operation Date (“COD”) of the facility;” and for NRIS “payments will begin no later than the expected COD and will be paid over a minimum of twelve monthly installments, such that the NRIS GRID-C will be paid in full no later than twelve months after the COD.”¹⁸ SPP explained that these payment terms were to balance the interests of both generation and load. Generation developers needed to complete financial transactions for transmission facilities close to the facility commercial operation date, while load wanted to avoid rate volatility resulting from the payments being credited on their bills in a single lump sum amount.¹⁹ This is just one example of a possible payment structure. Payment terms can be dependent on several factors and take different forms, but they must not diminish transparency, certainty, and predictability of the entry fee on which generator developers will depend.

Similarly to payment terms, there are options for handling the revenues received from the entry fees. AEP supports the concept that revenues be credited to load. This could be accomplished through a mechanism akin to “Contribution in Aid of Construction” used by utilities to offset the costs of new infrastructure necessary to serve load. The portion of the entry fee that covers the costs of the “driveway” facilities (facilities solely required to interconnect the generator) would be directly assigned to the generator and contributions from the generator would not be credited to load as they would benefit only the generation customer. The portion of the entry fee

¹⁸ SPP CPP Filing at 35; *id.* (“Thus, the GRID-C payments are being spread over time – typically three to five years for ERIS GRID-C and at least a year for NRIS GRID-C —with the goal of balancing the interests of generation and load.”).

¹⁹ SPP CPP Filing at 35.

cost associated with the network upgrades built in conjunction with the interconnection request would be credited to load by using it as an offset to transmission costs charged to load.

Implementation of an entry fee model will benefit both new generation and load. Generation developers will have cost certainty going into an interconnection process, which will facilitate a more efficient and expedient interconnection process enabling them to come online much faster. Load will benefit because more generation will be available to serve its increasing demand, and it will receive a rate benefit through the entry fee offset to the revenue requirement it is charged. Finally, a faster more efficient interconnection process will benefit all customers, including large loads, such as data centers and industry vital to the nation's economy, as well as residential customers by ensuring access to needed generation to keep the lights on.

C. Transmission Planning and Investment Should Be Proactive for the Benefit of the Nation

Transmission planning traditionally has been done on a reactive basis. Under the siloed approach used in almost every region of the country, transmission planners study new load or generation interconnection requests individually and identify incremental transmission upgrades necessary to support those requests. Each interconnection is treated as a one-off planning project or, at best, with a generation cluster study as a group of interconnections. This results in a hodgepodge development of the transmission system with little thought as to how the system as a whole should be developed to serve overall system needs.

The current approach will not deliver infrastructure on the timeline needed to ensure the United States continues to be a leader in artificial intelligence and is able to grow its manufacturing base. Large load additions are increasing too quickly and in too many locations. Left unchanged, a siloed reactive approach to transmission planning will result in a transmission system that is unable to address the needs of the modern economy and best serve the customers using that system.

Instead, transmission planning must become proactive.²⁰ Planners must be able to take a comprehensive view of the system focusing on existing needs and areas of expected growth. They must plan projects that will address all those needs in a holistic manner. Taking a forward-looking, “least regrets” approach to transmission planning allows planners to plan and develop projects based on future needs and identify projects that will cost-effectively address those needs.

1. Proactive Transmission Planning Is Necessary to Support Large Load Additions

Proactive transmission planning incorporates realistic projections of the anticipated generation mix and locations, load levels, and load profiles over the lifespan of the transmission investment.²¹ To do this, proactive transmission planning utilizes scenario-based planning, a multi-step process that allows planners to incorporate significant uncertainties into the planning process. First, planners must define multiple plausible scenarios of what the future could realistically look like based on existing and future generation resources, accounting for additions and retirements and potential locations. Planners must also account for load levels and load profiles over the anticipated life of the proposed transmission project or portfolio of projects under consideration.

Next, planners must develop transmission plans that could work for multiple, or all, of the identified scenarios. The plan should focus on the multiple benefits that transmission projects provide and their ability to cost-effectively address multiple needs, not just one aspect of transmission needs such as generation interconnections or new large load additions.

²⁰ The Brattle Group, *Proactive Transmission Planning for a Clean Energy Transition*, at 2-3 (2024) (citing Joe DeLosa III, Johannes Pfeifenberger & Paul Joskow, *Regulation of Access, Pricing, and Planning of High Voltage Transmission in the US* (2024), <https://www.brattle.com/wp-content/uploads/2024/03/Proactive-Transmission-Planning-for-a-Clean-Energy-Transition.pdf>; The Brattle Group and Grid Strategies, *Transmission Planning for the 21st Century: Proven Practices that Increase Value and Reduce Costs* (2021), <https://www.brattle.com/wp-content/uploads/2021/10/Transmission-Planning-for-the-21st-Century-Proven-Practices-that-Increase-Value-and-Reduce-Costs.pdf>).

²¹ See *id.*

Finally, planners select a preferred plan. This plan should incorporate defined indicators for planners to monitor—the outcome of an indicator will alert planners that a certain future is likely to occur, giving them an opportunity to change course. Furthermore, scenario-based planning can be combined with multi-driver planning, a network portfolio approach, and interregional planning to maximize efficient planning for future needs.²²

Widespread proactive transmission planning is the solution to address the concerns surrounding the increasing number of large load additions because it will anticipate and plan for load changes based on these load interconnections and ensure that transmission capacity exists to accommodate those load interconnections in an efficient and cost-effective manner.²³ Proactive transmission planning will also eliminate or reduce the need for resource intensive, reactive transmission network upgrade studies. In proactive transmission planning, future interconnection point locations are informed by projected load growth that accounts for large load additions and future generator interconnection queue requests. Therefore, when new resources and loads are ready to come online, there are more practicably accessible interconnection points available to them. It also encourages both generator and large load customers to interconnect in places that are most efficient for the existing and planned transmission to accommodate their interconnection because the transmission capacity will be available for their use. They will be able to interconnect faster and more cost-effectively. Proactive planning will result in millions more dollars of benefits to consumers. At present, under reactive planning, “for every \$1 billion investment in well-

²² *Proactive Transmission Planning for a Clean Energy Transition*, at 3.

²³ See, e.g., Midcontinent Independent System Operator, Inc., *MTEP21 Report Addendum: Long Range Transmission Planning Tranche 1: Executive Summary*, at 21-46, <https://cdn.misoenergy.org/MTEP21%20Addendum-LRTP%20Tranche%201%20Report%20with%20Executive%20Summary625790.pdf> (last visited on Nov. 20, 2025) (describing how MISO created its Tranche 1 portfolio of transmission projects based via proactive planning to address projected interconnection and reliability needs) (MTEP21 Report Executive Summary); Southwest Power Pool, Inc., *2025 Integrated Transmission Planning Assessment Report*, at 170-215 (2025), <https://spp.org/documents/75192/2025%20integrated%20transmission%20plan%20report.pdf>.

planned, large-scale transmission that is delayed, it costs consumers approximately \$150 million to \$370 million in lost net benefits for each year of delay.”²⁴

Proactive planning will likewise reduce the need for transmission network upgrade studies, which are currently relied on because most transmission planning is reactive. Under reactive planning, transmission plans are only responding to present—or even past—reliability needs, and the transmission system is not ready for new interconnections. Thus, a network upgrade study is necessary to address the needs of a new interconnection. Under proactive planning, network upgrade studies are far less likely to be necessary for any given project, because the proactive plan has already considered and prepared for the needs of future projects. Thus, by looking ahead rather than behind, proactive transmission planning removes barriers to interconnection and reduces costs to all customers by efficiently and cost effectively identifying the transmission projects that will benefit the entire system. Accordingly, the Commission should adopt reforms necessary to support proactive transmission planning to address the growing issues created by the increase in large load interconnections.²⁵

²⁴ Zach Zimmerman, Rob Gramlich & Michael Goggin, *Delaying transmission increases costs and reduced benefits for consumers*, at II (2025), <https://wiresgroup.com/wp-content/uploads/2025/11/Cost-of-Delayed-Transmission-Report-by-Grid-Strategies-for-WIRES.pdf>.

²⁵ The Commission may also want to request feedback on the potential benefits to proactive transmission planning which could be offered from registration of large loads with NERC. In July of this year, NERC’s Large Loads Task Force issued a whitepaper in which NERC notes the unique characteristics associated with those loads necessary to accurately model and analyze their individual and collective impact on the electric grid. See NERC, *Characteristics and Risks of Emerging Large Loads*, at 15 (2025), <https://www.nerc.com/globalassets/who-we-are/standing-committees/rstc/whitepaper-characteristics-and-risks-of-emerging-large-loads.pdf>.

D. A Nationwide Cost Allocation for High Voltage Transmission Will Address a Critical Obstacle to the Necessary Transmission Development to Support Interconnection of Large Loads that Benefits the National and Economic Interest of All Americans

Cost allocation can be the biggest obstacle to getting necessary transmission built.²⁶ The delays caused by the uncertainty over who must pay for necessary transmission can prevent investment in such transmission. For example, co-location can present cost allocation concerns if it co-located loads receive service in a manner that deviates from FERC's core transmission cost allocation principles²⁷ or if bundled retail services are misunderstood or ignored. However, the thoughtful consideration of cost allocation issues need not delay the interconnection of large loads.²⁸

Given the significant national interest in ensuring that large loads can come online to support data centers and other industries, the Commission cannot allow parochial fights over cost allocation to slow our nation's progress and impede the connection of these loads to the system. As the Administration has recognized, data centers are critical for national security and provide economic benefit to all Americans.²⁹ To avoid these fights and smooth the path for transmission

²⁶ See, e.g., *Midwest Indep. Transmission Sys. Operator, Inc.*, 133 FERC ¶ 61,221 (2010) (initial Commission order on MISO's MVP cost allocation methodology; litigation remained active into 2018), *order on clarification*, 137 FERC ¶ 61,074 (2011), *aff'd in part, vacated in part sub nom., Ill. Com. Comm'n v. FERC*, 721 F.3d 764 (7th Cir. 2013); *order on remand*, 156 FERC ¶ 61,034 (2016), *order on reh'g and clarification*, 164 FERC ¶ 61,191 (2018) *Del. Pub. Serv. Comm'n v. PJM Interconnection, L.L.C.*, 155 FERC ¶ 61,090 (2016) (initial Commission order on complaint against solution-based distribution factor cost allocation methodology for the Artificial Island Project; litigation remained active into 2020), *order on reh'g*, 164 FERC ¶ 61,035 (2018), *reh'g denied*, 164 FERC ¶ 61,035, *order granting reh'g*, 169 FERC ¶ 61,234 (2019), *order on reh'g*, 171 FERC ¶ 61,024 (2020); *PJM Interconnection, L.L.C.*, 119 FERC ¶ 61,063 (2007) (initial Commission order on PJM's 2005 license plate transmission rate design dispute; litigation continued into 2014), *reh'g denied*, 122 FERC ¶ 61,082 (2008), *aff'd sub nom., Ill. Com. Comm'n v. FERC*, 576 F.3d 470 (7th Cir. 2009), *order on remand*, 138 FERC ¶ 61,230 (2012), *reh'g denied*, 142 FERC ¶ 61,216 (2013), *aff'd sub nom., Ill. Com. Comm'n v. FERC*, 756 F.3d 556 (2014).

²⁷ See *PJM Interconnection, L.L.C.*, 189 FERC ¶ 61,078 (2024), *modified on den. of reh'g*, 191 FERC ¶ 61,025 (2025).

²⁸ As discussed by panelists at FERC's technical conference regarding Large Loads Co-Located at Generating Facilities, the driver for co-location is the need for generation – not the allocation (or avoidance of allocation) of transmission and distribution infrastructure costs. See *Large Loads Co-Located at Generating Facilities*, Post-Technical Conference Comments of American Electric Power Service Corporation, Docket No. AD24-11-000, at 3 (filed Dec. 9, 2024).

²⁹ ANOPR Cover Letter (Oct. 23, 2025).

investment, AEP proposes that the Commission adopt a national cost allocation for all “backbone” transmission projects—that is, transmission lines that are extra high voltage, for example 345 kV and above (EHV transmission). Transmission investments that are 345 kV and above provide benefits nationwide because they create a more robust, readily accessible transmission system for everyone. They also benefit all Americans by providing the energy infrastructure needed to support the growing demand for energy by data centers and other infrastructure critical to the national economy.

AEP has already demonstrated to the Commission that EHV transmission provides broad reliability benefits,³⁰ noting in testimony that EHV transmission is “better suited for the transfer of large blocks of power over substantial distances” and the EHV system provides “broad regional benefits in terms of enabling long distance transmission activity.”³¹ EHV systems are essential for regional transactions and emergency transactions.³²

SPP’s Highway/Byway cost allocation methodology, which was adopted and approved by the Commission in 2011, also recognizes the broad benefits of EHV transmission.³³ Under SPP’s Highway/Byway, the costs of facilities operating at 300 kV and above are allocated 100% across the SPP region on a postage stamp basis.³⁴ One of the Commission’s key reasons for accepting this proposal was the fact that, in 2011, “evolving circumstances in the SPP region require significant expansion of its transmission system,” which included the region’s transition to “larger, centralized transmission system operations and regional power markets.”³⁵

³⁰ *PJM Interconnection, L.L.C.*, Initial Brief of American Electric Power Service Corp. and Allegheny Power, Docket No. EL05-121, at 39 (filed May 17, 2006).

³¹ *See id.*

³² *Id.* at 42.

³³ *Southwest Power Pool, Inc.*, 131 FERC ¶ 61,252 (2010).

³⁴ *Id.* at P 10.

³⁵ *Id.* at P 65.

The current and projected boom in large load additions present analogous circumstances nationwide. At present, as the ANOPR acknowledges, “electricity demand is expected to grow at an extraordinary pace” and “demand growth is now higher than at any point in the past two decades.”³⁶ The nation’s transmission system is at the crux of this issue. Like the circumstances in the SPP region fifteen years ago, the present circumstances require a significant expansion of the transmission system. Interconnecting large loads effectively and efficiently at higher levels than ever before will require a more reliable and more robust transmission system. Thus, as the Commission acknowledged regarding SPP, transmission system expansion with broad benefits over a vast region requires a cost allocation methodology that recognizes these broad benefits. A national cost allocation for EHV transmission investment to enable the interconnection of large load customers is an extension of the Commission’s policies and precedent, necessitated by changed system conditions and grounded in the Federal Power Act’s requirement that rates are just and reasonable.

The Commission’s implementation of a nationwide cost allocation to fund NERC provides a model in applying this approach to backbone transmission investments. In Order No. 672,³⁷ the Commission set forth the regulations, 18 C.F.R. § 39, to incorporate the requirements of section 215 of the Federal Power Act, which required the selection of an electric reliability organization (“ERO”) to maintain and enforce reliability standards. Under these regulations, the ERO submits, and the Commission approves, an annual budget.³⁸ The costs to fund this budget are allocated based on “net energy for load,”³⁹ that is, solely based on energy consumption. Then, “all entities

³⁶ ANOPR at P 1.

³⁷ *Rules Concerning Certification of the Electric Reliability Organization; and Procedures for the Establishment, Approval, and Enforcement of Electric Reliability Standards*, Order No. 672, 114 FERC ¶ 61,104 (2006).

³⁸ 18 C.F.R. § 39.4(b).

³⁹ *N. Am. Elec. Reliability Corp.*, 116 FERC ¶ 61,062, at P 8 (2006) (“NERC proposes to allocate its annual reliability program costs among load serving entities on the basis of net energy for load. It further proposes that each Regional Entity bill and collect fees from the load serving entities within its geographic boundaries. NERC intends to submit

within the Commission’s jurisdiction as set forth in section 215(b) of the Federal Power Act shall pay any Electric Reliability Organization assessment of dues, fees, and charges as approved by the Commission.”⁴⁰ This is because the reliability standards benefit all Americans and thus they should all appropriately pay for the administration and enforcement of such standards.⁴¹

The Commission should likewise implement a national cost allocation for EHV transmission investment because it provides benefits to all Americans by providing the infrastructure necessary to win the AI race.⁴² Cost-causation is not an exact science.⁴³ Accordingly, courts and the Commission have acknowledged that adherence to cost causation principles does not require that cost allocation methodologies balance costs and benefits with “exacting precision.”⁴⁴ Ultimately, the requirement is met so long as “all approved rates reflect to some degree the costs actually caused by the customer who must pay them[,]”⁴⁵ and this is done by ensuring that costs are “allocated in a manner that is at least roughly commensurate with benefits.”⁴⁶

its annual budget for Commission approval, including funding for delegated activities it has assigned to each Regional Entity.”); *Alcoa Inc. v. FERC*, 564 F.3d 1342 (D.C. Cir. 2009).

⁴⁰ 18 C.F.R. § 39.4(b).

⁴¹ *Kentucky Public Service Commission v. American Electric Power Service Corporation*, 193 FERC ¶ 61,110, at P 59 (FERC Nov. 7, 2025) (“Furthermore, we note the Commission has long recognized that the transmission network provides benefits to all transmission customers.”)

⁴² While the approach that the Commission implemented in the case of NERC funding—a charge based on net energy for load—could be the starting point in a proposed rule to adopt a national cost allocation method, the proposal would benefit from investigation of alternative approaches to cost recovery.

⁴³ *See Ill. Com. Comm’n v. FERC*, 576 F.3d 470, 477 (7th Cir. 2009) (holding that transmission customer’s benefits must be “at least roughly commensurate” with the costs allocated to them).

⁴⁴ *Coalition of MISO Transmission Customers Indus. Energy Consumers of Am. LS Power Midcontinent, LLC v. Midcontinent Indep. System Operator, Inc.*, 172 FERC ¶ 61,099, at P 83 n.228 (quoting *Midwest ISO Transmission Owners v. FERC*, 373 F.3d 1361, 1369 (D.C. Cir. 2004)).

⁴⁵ *Id.* at P 82 (quoting *KN Energy Inc. v. FERC*, 968 F.2d 1295, 1300 (D.C. Cir. 1992)).

⁴⁶ *Mun. Energy Agency of Neb. v. Pub. Serv. Co. of Colo.*, 189 FERC ¶ 61,099, at PP 41, 46 (2024) (citation omitted) (subsequent history omitted); *see also Pub. Serv. Elec. & Gas Co. v. FERC*, 989 F.3d 10, 13 (D.C. Cir. 2021) (explaining that “although the Commission need not ‘allocate costs with exacting precision,’ the costs assessed against a party must bear some resemblance ‘to the burdens imposed or benefits drawn by that party’” (quoting *Midwest ISO Transmission Owners*, 373 F.3d at 1368-69)).

Here, as described above, the EHV system provides broad benefits to users of the transmission grid. It creates a backbone system that allows the entire grid to function more efficiently and cost effectively and provides a mechanism to move large amounts of power to the areas where such power is needed. As the D.C. Circuit has recognized, “regional benefits [] accrue **throughout the grid**,”⁴⁷ and “[i]mprovements to an integrated grid that ‘enhance[] transmission security and reliability’ are ‘**presumed to benefit the entire system**.’”⁴⁸ The Commission also consistently finds that that an integrated transmission system “is a cohesive network whose expansion benefits all users of the grid[.]”⁴⁹ In a 2020 report prepared for Congress, Commission staff also recognized that high voltage transmission provides benefits on an extremely broad scale, and these broad benefits include “sharing of resources across regions by improving interregional power transfer capability; [] aiding with restoration and recovery after an event; [] improving frequency response; and [] enhancing the stability of the interconnected transmission system.”⁵⁰ Also, academic analysis of wholesale energy market prices in the U.S. between 2012 and 2022 has demonstrated that, in many cases, cross-interconnection and interregional transmission investments have balanced, bi-directional benefits.⁵¹

Thus, while new transmission is necessary infrastructure to support the AI arms race, the benefits do not end with the users of any one of part of the system. In the case of data centers, the

⁴⁷ *Long Island Power Auth. v. FERC*, 27 F.4th 705, 709 (D.C. Cir. 2022) (emphasis added).

⁴⁸ *Paragould Light & Water Comm'n v. FERC*, 144 F.4th 287, 292–93 (D.C. Cir. 2025) (emphasis added) (citing *Midwest ISO Transmission Owners v. FERC*, 373 F.3d 1361, 1369, 1371 (D.C. Cir. 2004)).

⁴⁹ *Am. Elec. Power Serv. Corp.*, 101 FERC ¶ 61,211, at P 14 (2002).

⁵⁰ Staff of the Federal Energy Regulatory Commission, *Report on Barriers and Opportunities for High Voltage Transmission*, at 6-10 (2020), <https://www.congress.gov/116/meeting/house/111020/documents/HHRG-116-II06-20200922-SD003.pdf>; see also Southwest Power Pool, *The Benefits of a Transmission Superhighway*, https://www.spp.org/documents/10047/benefits_of_robust_transmission_grid.pdf (last visited on Nov. 20, 2025) (describing how a “robust transmission grid benefits everyone” and how benefits includes improved access to lower-cost generation, more cost-effective projects to meet minimum reliability requirements, and more diverse fuels).

⁵¹ Julie Kemp et al., *Electric transmission value and its drivers in United States power markets* (2025) <https://www.nature.com/articles/s41467-025-63143-5#citeas>.

benefits expand beyond those who actually make use of the facilities in question and flow to the entire nation via improved reliability to the bulk power system. Furthermore, as the President's AI Action Plan states, we are "in a race to achieve global dominance in artificial intelligence (AI)."⁵² And winning this race "will reap broad economic and military benefits" which will flow to all Americans.⁵³ Accordingly, it is consistent with the principles of cost causation that the costs of the infrastructure should be borne equally across the nation.⁵⁴ A national cost allocation would provide an avenue for the Commission to address the urgent issues obstructing large load additions within the bounds of its jurisdiction.

IV. Conclusion

The United States is at a pivotal point in time where it can support the growth of new large loads such as data centers and domestic manufacturing—but only if new generation is efficiently and quickly interconnected to the Nation's electric grid, the transmission infrastructure those industries rely upon is available when needed, and costs are fairly allocated. AEP appreciates the Commission's consideration of its proposed reforms to accelerate generator interconnection,

⁵² The White House, *America's AI Action Plan*, at 1 (2025), <https://www.whitehouse.gov/wp-content/uploads/2025/07/Americas-AI-Action-Plan.pdf>.

⁵³ *Id.*

⁵⁴ Transmission cost allocation is well within the Commission's jurisdiction. *See, e.g., S.C. Pub. Serv. Auth. v. FERC*, 762 F.3d 41, 84 (D.C. Cir. 2014) (noting it was undisputed that cost allocation of transmission facilities falls under FERC's jurisdiction as a practice affecting rates) (citing *La. Pub. Serv. Comm'n v. FERC*, 522 F.3d 378, 389–90 (D.C.Cir.2008); *Miss. Indus. v. FERC*, 808 F.2d 1525, 1540 (D.C.Cir.1987); *FirstEnergy Serv. Co. v. FERC*, 758 F.3d 346, 354–55 (D.C. Cir. July 18, 2014)).

promote proactive transmission planning, and implement nationwide cost allocation for America's high voltage transmission backbone.

Respectfully Submitted,

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November 21, 2025

CERTIFICATE OF SERVICE

I hereby certify that on this 21st day of November 2025, I have served a copy of the foregoing document on the official service list compiled by the Office of the Secretary for the above-referenced proceeding.

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